

ANNEX 1

REPUBLIC OF THE PHILIPPINES)
CITY OF _____) S.S.

**SWORN DECLARATION AND UNDERTAKING FOR EXEMPTION FROM
REGISTRATION OF DATA PROCESSING SYSTEMS**

I Joselito Q. Edong, of legal age, and residing at LOWER SALAZAR, MATI, DAVAO ORIENTAL, after having been duly sworn in accordance with law, do hereby depose and state that:

1. I am the Joselito Q. Edong of Softtech Solutions and Services Co. with the following contact details:
 - a. Office Address: LOWER SALAZAR, MATI, DAVAO ORIENTAL;
 - b. DPO Name: Joselito Q. Edong;
 - c. DPO Email Address: dpo@softtechservices.net; and
 - d. Contact Number: 09122350149;
2. I am duly authorized to issue this Sworn Declaration and Undertaking on behalf of Softtech Solutions and Services Co. as manifested in the attached [proof of authority such as a Board Resolution embodied in a Secretary's Certificate];
3. Softtech Solutions and Services Co. does not meet the registration requirements for all of the following reasons:
 - Softtech Solutions and Services Co. employs less than two hundred fifty (250) persons;
 - the processing by Softtech Solutions and Services Co. does not include sensitive personal information of at least one thousand (1,000) individuals;
 - Softtech Solutions and Services Co. does not process any information likely to pose a risk to the rights and freedoms of data subjects including those that involve information likely to affect national security, public safety, public order, or public health or information required by applicable laws or rules to be confidential; vulnerable data subjects like minors, the mentally ill, asylum seekers, the elderly, patients, those involving criminal offenses, or in any other case where an imbalance exists in the relationship between a data subject and a PIC or PIP, especially those involving automated decision-making or profiling; and
 - Softtech Solutions and Services Co. is not a government agency or instrumentality;
4. I undertake that Softtech Solutions and Services Co. shall comply with orders of the Commission requiring the submission of additional documents and other relevant information, and that failure to comply with such orders will be subject to fines and other applicable penalties;

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5. I undertake to immediately inform the Commission by filing a new Sworn Declaration and Undertaking within ten (10) days from any change in the declarations in number 1;
6. I undertake to immediately register with the Commission within twenty (20) days from existence of facts showing that the basis for this Sworn Declaration and Undertaking is no longer true;
7. I am executing this Sworn Declaration and Undertaking to attest to the truth of the foregoing statements and to comply with the requirements of the Data Privacy Act, its Implementing Rules and Regulations, and other relevant issuances of the National Privacy Commission.

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of _____, 20__ at _____, Philippines.

Joselito Q. Edong
Affiant

SUBSCRIBED AND SWORN to before me this ____ day of _____, 20__, Affiant exhibiting to me a competent proof of identity _____ issued at _____ on _____.

NOTARY PUBLIC

Doc No. ____;
Page No. ____;
Book No. ____;
Series of ____.

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